

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Miscellaneous Case No.10691 of 2023.
Syed Tawqir Husain
.....Accused-Petitioner
-Versus-
The State
... Opposite Party
Mr. Md. Motiur Rahaman, Advocate
.... For the accused-petitioner
Mr. Sujit Chatterjee, D.A.G
... For the State
Heard and Judgment on: 20.02.2024.

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the proceeding of Mirpur Police Station Case No.19 dated 09.02.2021 corresponding to G. R. No.85 of 2021 under sections 385 and 387 of the Penal Code, 1860, now pending in the Court of learned Chief Metropolitan Magistrate, Dhaka should not be quashed and/or such other further order or orders as to this Court may seem fit and proper.

Facts in short are that the brother of alleged victim Jinat Sarmin Sila lodged ejahar alleging that unknown accused persons created obscene and vulgar messages and giving objectionable posts in the social media and making derogatory remarks about his sister the ex-wife of the petitioner. The petitioner divorced his sister in 2017 who left this country for good and living in the UK. The unknown accused

persons also demanded donations to the informant. The informant suspected the petitioner behind all above obscene and unlawful activities. The part of the allegation relating to sections 24/25/29/35 of the Digital Security Act, 2018 was investigated by a Sub-Inspector of Web Based Crime Investigation Team who finding no truth in above allegations submitted a final report which was accepted and the case was dismissed.

On conclusion of investigation of the part of the allegations punishable under sections 385 and 387 of the Penal Code the investigating officer finding no truth in above allegations submitted a final report. The learned Magistrate instead of accepting above report directed for further investigation by the Police Bureau of Investigation vide impugned order dated 23.11.2022.

Being aggrieved by and dissatisfied with above order of the learned Metropolitan Magistrate the petitioner moved to this court and obtained rule.

Mr. Md. Motiur Rahaman learned Advocate for the petitioner submits that the petitioner divorced the sister of the informant in 2017. The victim left this country for good and living in the United Kingdom. The petitioner is living in Bangladesh. During investigation the mobile telephone of the petitioner was subjected for forensic examination but nothing objectionable was found. Similarly the police did not find any substance in the allegation made under section 385 and 387 of the Penal Code and submitted a final report. During investigation the informant or his sister the alleged victim did not give evidence to the investigation officer. As such the learned Metropolitan Magistrate should have accepted the police report and dismissed the

case but instead the learned Metropolitan Magistrate most illegally directed for further investigation which is liable to be quashed.

Mr. Sujit Chatterjee learned Deputy Attorney General submits that on consideration of materials on record the learned Metropolitan Magistrate has rightly directed for further investigation which calls for no interference.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

As mentioned above the petitioner was the husband of victim alleged Sila the sister of the informant. Undisputedly the petitioner divorced victim Sila in 2017 and she left Bangladesh for good and living in the UK. The informant did not mention the name of the petitioner as an accused in the ejahar nor any specific allegation was brought against him in the body of the ejahar. On conclusion of investigation police did not find any truth in the allegations made against the petitioner under section 385 and 387 of the Penal Code as well as under sections 24/25/29/35 of the Digital Security Act, 2018. The learned Metropolitan Magistrate accepted the police report as far as the same was related to the Digital Security Act and dismissed above case. But the learned Metropolitan Magistrate did not accept the police as far as the allegations made under sections 385 and 387 of the Penal Code are concerned.

An offence of demand of subscription or donation putting a person in fear of injury or death cannot be perceived without mentioning of the name of the person who made above demand. As mentioned above in the ejahar no name of any person was mentioned as an accused. As such that the further investigation will be a futile

exercise. The learned Metropolitan Magistrate should have accepted police report and dismissed this still born and preposterous case but instead the learned Metropolitan Magistrate has directed for further investigation which is not tenable in law.

In above view of the materials on record we find substance in this petition under section 561A of the Code of Criminal Procedure and the rule issued in this connection deserves to be made absolute.

In the result the Rule is made Absolute.

The proceeding of Mirpur Police Station Case No.19 dated 09.02.2021 corresponding to G. R. No.85 of 2021 under sections 385 and 387 of the Penal Code, 1860 is hereby quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.